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EGYPT

Human Rights Developments

Although political violence reached its lowest ebb in almost a decade, the government of President Hosni Mubarak appeared impervious to demands for political reform. In a major setback, legislation was enacted that appeared carefully crafted to decrease the independence of civil society organizations. Substantial curbs on freedom of association and assembly prevailed, ensuring that peaceful political opposition activities remained marginalized or restricted. No steps were taken to address the grave human rights violations that had accompanied the state's pursuit of armed Islamist militants—including torture, deaths in detention, extrajudicial executions, and "disappearances"—and the architects and perpetrators of these acts continued to enjoy impunity. Evidence continued to mount that local police forces were employing similar torture techniques against ordinary citizens that elite security forces had used systematically against suspected armed militants, their families, and supporters.

On September 26, some 18.6 million citizens voted in a national referendum and 93.97 percent approved Hosni Mubarak's fourth six-year term of office, according to the interior ministry. As in past referenda, there were no other candidates. Earlier in the month, opposition politicians and intellectuals launched a petition drive to support reforms for a pluralistic political system: suspension of the virtually permanent state of emergency; release of nonviolent political prisoners; freedom to establish political parties, newspapers and other media; guarantees for the independence of trade unions and civic and professional associations; and free and fair elections. In pointed criticism of the powerful institution of the presidency, the petition endorsed a future with governments "accountable to the people" and presidents "elected among various candidates and for no more than two terms."

The state's battle with armed militants inside Egypt appeared to be drawing to a close, although continuing rights abuses marred some otherwise positive developments. On March 25, the clandestine Islamic Group issued a statement announcing that all of its cadres "inside and outside" the country would bring "armed operations" to a halt. In April, some 1,000 to 1,200 known or suspected Islamic Group members were reportedly released from prison, bringing to about 6,000 the number set free under Interior Minister Habib el-Adli, who assumed his post in November 1997. In welcoming the releases, the Egyptian Organization for Human Rights (EOHR) called on authorities also to reverse the ban on visits to inmates at Tora, Fayoum, and Liman Abu Za'bal prisons, and improve the appalling conditions, including gross medical neglect, at these and other facilities. In a positive move in August, the new prosecutor general, Maher Abdel Wahid, pledged closer oversight of prisons through periodic unannounced visits of prosecutors to inspect conditions and take complaints, a legal responsibility that had been systematically neglected by his predecessor, Raga' el-Arabi, during his long tenure. "Any prosecutor who fails to abide by these directives will be taken to task. If he says he has inspected a prison and then some fault is found, he himself will be interrogated," Abdel Wahid warned in an interview with al-Ahali (Cairo) newspaper. He also ordered the local prosecutor to reopen the investigation of alleged police abuse, including torture, in al-Kosheh village in August 1998 (see below).

Egypt's criminal, state security, and military courts continued to impose capital punishment on defendants in criminal and political trials. Amnesty International reported that in 1998 the courts

issued seventy-four death sentences and forty-eight individuals were executed; in 1999, sixty-two people had been sentenced to death and thirteen executed as of August 10.

Egyptian authorities, reportedly with assistance from U.S. law enforcement and intelligence agencies, vigorously pursued Islamist militants based outside of Egypt, particularly those believed to be associated with exiled Saudi dissident Osama bin Laden, whose International Front for the Struggle Against Jews and Crusaders, formed in 1998 prior to the August bombings of the U.S. embassies in Kenya and Tanzania, included Egypt's underground Jihad Organization as a member. On April 18, the supreme military court handed down sentences in a mass trial of 107 alleged Jihad members that began on February 1. Some of them were reportedly captured abroad and handed over to Egyptian authorities from countries such as Albania, Saudi Arabia, and Azerbaijan, and sixty were tried in absentia. The court acquitted twenty defendants, and sentenced nine to death, all in absentia, including Ayman al-Zawahri, widely described as the leader and military commander of Jihad. The others received terms ranging from one year to life. Decisions of the military court could not be appealed to a higher tribunal and thus fell short of international fair trial standards.

Ordinary Egyptians continued to suffer torture at the hands of local police, and deaths in police custody remained a serious unaddressed problem. For example, EOHR documented five deaths in custody between February 16 and July 17, involving men arrested on suspicion of nonpolitical offenses such as theft and narcotics possession. EOHR said that it "found evidence that the victims were subjected to torture by the police." One of the victims, Saeed Sayid Abdel Aal Salim, was arrested on April 15 on suspicion of hiding stolen property and died in custody two days later. The local chief prosecutor examined the body and, according to EOHR, reported a variety of injuries. In actions reminiscent of security forces behavior in previous years when suspected Islamist militants died in custody under suspicious circumstances, police reportedly guarded the local cemetery for ten days after instructing the family to remain quiet about the death and bury the body quickly.

As in past years, the pattern of restrictions on the rights of free expression, assembly, and association was largely unchanged, but worsened in several significant respects. Continuing a disturbing trend that began in 1998, three journalists were sent to prison and others were questioned, facing the prospect of criminal prosecution. Despite ongoing protests from the journalists syndicate and human rights groups about its use to punish controversial but peaceful expression, libel remained a criminal offense subject to fines and a maximum sentence of one year in prison, doubled in cases involving public officials. On August 14, the South Cairo Criminal Court sentenced three journalists from the opposition biweekly al-Sha'ab- writer Salah Badawi, cartoonist Essam Hanafi, and editor-in-chief Magdi Hussein- to two years in prison and fines of LE20,000 each (about U.S. \$6,000) after finding them guilty of libeling agriculture minister and deputy prime minister Yousef Wali in a series of articles that claimed his ministry's agricultural cooperation with Israel amounted to "treason," among other harsh criticisms. In sentencing the journalists, the judge said they had "filled their pens with black hatred instead of black ink and launched a blind and unfair campaign against their victim." In February, state security court prosecutors questioned editor Abbas al-Tarabili and journalist Muhamed Abdel Alim of the opposition daily al-Wafd on accusations of "publishing false reports and propaganda undermining public interest and threatening national security" for reporting about a strike at the Central Bank. They were released on bail but faced imprisonment if tried and convicted.

Authorities also openly acknowledged and justified the banning of books. In reply to complaints about scores of titles that censors had prohibited at the private American University in Cairo (AUC), Lutfi Abdel-Kader, director of the government's press and publications department, was quoted in the March 18-24 issue of al-Ahram Weekly (Cairo) as saying that the AUC was "deliberately ordering books that can't be allowed in the country because they violate our religion, culture, and traditions. They are trying to infiltrate our identity and culture. But we'll never permit this infiltration." Among the books reportedly banned were *Children of Gabalawi* by Nobel prize-winner Naguib Mahfouz; *Woman at Point Zero* by Egyptian feminist Nawal el-Saadawi; and *Muslim Extremism in Egypt* by the French scholar Giles Kepel.

Secular activists continued to face restrictions on the right to freedom of assembly. Security forces prevented human rights activists from peacefully protesting the British and U.S. bombing of Iraq on December 17, 1998, the day it began, and blocked opposition political parties from a similar protest on

December 24. On March 12, 1999, five people who attended a meeting in the Shubra al-Kheima section of Cairo to discuss the draft labor law were arrested, reportedly for undermining social peace and inciting workers to strike. They were detained overnight and then released on bail. Three of them were members of the Tagammu Party, a legal leftwing political party which had arranged the meeting.

The right to establish political parties remained severely circumscribed because the anachronistic political parties law of 1977 required newly formed groups to seek legal status from the Political Parties Committee, an entity that lacked independence and has historically denied licenses in arbitrary fashion. Harassment and arbitrary arrest of known or suspected members of the nonviolent but unauthorized Muslim Brotherhood also continued, possibly to weaken the influential group's ability to field independent candidates in the parliamentary elections scheduled for November 2000. As hundreds of suspected militant Islamists were released from prison, Muslim Brothers, including doctors, engineers, and teachers, were arrested, detained, and questioned by prosecutors throughout the year, typically suspected of membership in an illegal organization, possession of illegal leaflets, and attempting to reactivate the group by recruiting new members. In January, interior minister Habib el-Adli ruled out any role for the Brotherhood in the political system: "They are a banned group. They have no legal status and, hence, there will be no meetings or dialogue."

The enactment in May of the controversial Law No. 153 on nongovernmental organizations (NGOs) served as a powerful reminder of the state's reluctance to loosen its grip on political and civil life. On May 14, four leading Egyptian human rights organizations described the legislation as "a reflection of the government's general intention to restrict further any form of independent association, be it political parties, unions, professional syndicates, or NGOs." The law's seventy-four articles provided a detailed blueprint for the government's micromanagement of all aspects of NGO operations. Article 11 of the law prohibited NGOs that "threaten national unity," "violate public order or morality," or "practice any political or trade-union activity exclusively restricted to political parties and trade unions." Article 75 set forth a harsh regime of criminal penalties, including fines and prison terms ranging from three months to one year for violations of various provisions of the law. In June, social affairs minister Mervat Tellawi made clear the government's intention to prevent NGOs from engaging in activities that the government deemed political. "I am not allowing, by this law, for the creation of 14,000 political parties," she said. In July, she wrote in a letter to the Financial Times (London) that the new law "does ban [NGOs] from taking part in partisan activities." As of October 22, the executive regulations to operationalize the law had not yet been promulgated.

As the government proceeded with IMF-prescribed privatization and economic deregulation, Egyptian workers continued to be denied the legal right to strike and engage in collective bargaining, and hundreds of thousands of children were unprotected from abusive workplace conditions. The Brussels-based International Confederation of Free Trade Unions (ICFTU) concluded in a June report that there were "serious violations of trade union rights" in Egypt, noting that "[i]n both the public and the private sectors, the government considers strikes a form of public disturbance and therefore illegal" and that "security forces have often used violence to bring an end to industrial disputes." The ICFTU also reported widespread employment discrimination based on gender, and extensive use of child labor in both rural and urban areas, citing Ministry of Health statistics of some two million child workers between six and fifteen years old.

Under Egyptian law, children over twelve years old are permitted to work up to six hours daily in the agricultural sector. But the Land Center for Human Rights (LCHR), an independent Egyptian NGO, found in its 1999 study of state- and privately-owned cotton gins in the Nile Delta that thousands of children between eight and fifteen years old worked eight-hour shifts without lunch or rest breaks for a daily wage of two or three Egyptian pounds (less than U.S. \$1.00). The children, who lacked any type of legal protection, labored in extremely dusty environments without masks or respirators. Some had contracted respiratory diseases and sustained injuries for which only token compensation was provided to their poverty-stricken families. The LCHR reported that there was no effective inspection and supervision of these workplaces by the local offices of government ministries, and initiated lawsuits on behalf of the child workers to press for safer working conditions and medical care for job-related injuries and illnesses.

Egypt's Christian minority continued to have legitimate grievances about discriminatory treatment under the law and in practice. They were underrepresented in senior-level positions in government, including universities, and military and security forces. Church construction and repair were subjected to discriminatory authorization procedures, including the need for a presidential decree in order to build a new church. The U.S. State Department reported in its Annual Report on International Religious Freedom, published on September 9, that there had been "a significant increase" in the number of approvals that governors granted in 1998 for church repairs. The internationally recognized right of men and women to marry and found a family was restricted because Islamic law prohibited Egyptian Muslim women from marrying non-Muslim men.

Defending Human Rights

Egypt's human rights community faced an unprecedented crisis when the state security prosecutor on December 1, 1998, accused the secretary-general of EOHR, lawyer Hafez Abu Sa'da, of three criminal offenses: disseminating information abroad that harmed Egypt's national interests; accepting funds from a foreign country with the goal of carrying out acts harmful to Egypt; and receiving donations without government permission. Abu Sa'da was summoned to appear that day as a witness in the investigation opened on November 24, 1998, of the EOHR report published in September 1998, "Collective punishment in al-Kosheh village: Random arrest, torture and degrading treatment of citizens." The report documented police abuse of hundreds of mainly Christian residents in al-Kosheh, near Sohag in Upper Egypt, following the murder there of two Christians in August 1998, and called on Egyptian authorities to investigate the torture allegations and prosecute those found responsible. The prosecutor acted in the wake of continuing controversy inside Egypt and internationally about the report's findings, and also examined financial support that EOHR received from abroad, based on allegations made in the Egyptian press that the report was financed with foreign funds.

Abu Sa'da was questioned on December 1 and ordered to serve fifteen days in preventive detention while the investigation continued. He was released on bail on December 6 as condemnation of his arrest mounted in Egypt and internationally. The same day, however, the state security prosecutor summoned for questioning EOHR lawyer Mustafa Zeidan, who conducted the fieldwork for the report. Zeidan was accused of disseminating false information for the purpose of harming Egypt's national interests. As of this writing, the criminal charges against the two had not been dropped.

The continuing inhospitable environment for local human rights organizations was illustrated in remarks of social affairs minister Mervat Tellawi at a press conference in June. She said that the groups were "illegal" because they were not registered with her ministry and that their publications included "groundless claims." Rights organizations continued to operate and publish their reports freely, although their future status under the new NGO law remained unclear.

The Role of the International Community

United Nations

Torture and workers rights were among the issues raised by U.N. bodies during 1999. The Committee against Torture considered Egypt's report on compliance with the Convention against Torture and on May 14 noted as positive developments the release of prisoners who had been detained under the emergency law, a reduction in the number of complaints about mistreatment, and decisions of civil courts to provide compensation to torture victims. But the committee also stressed its continuing concern about the large number of torture complaints and deaths in detention at the hands of police and security forces, including mistreatment of women. It recommended that Egypt undertake effective measures to prevent torture and protect women from threats of sexual abuse while in custody. It also suggested that authorities "establish and maintain a proper [public] registry of detainees" held by police and security forces, and asked it to provide the committee "with information about the number of circumstances of deaths in custody over the past five years."

The pre-sessional working group of the U.N. Committee on Economic, Social and Cultural Rights noted on May 21 the issues to be addressed in Egypt's first report on compliance with the International Covenant on Economic, Social and Cultural Rights. These included a request that the government clarify why all trade unions were required by law to join the nationwide Egyptian Trade Union

Federation, and why the government tolerated "the practice of hiring labor on condition of their denouncing or resigning from labor unions." The group also asked for information about "numerous cases of forced early retirements, arbitrary dismissals and unemployment, as well as the wholesale shutdown of factories" that have accompanied the state's privatization program.

European Union

Egypt and the European Union (E.U.) concluded four years of negotiations on the text of a Euro-Mediterranean Association Agreement shortly after the E.U. Council of Ministers agreed on June 21 to a final offer on agricultural export quotas. Egypt reportedly also secured E.U. agreement to a joint declaration on the "fair treatment" of workers legally residing in either territory, including some 400,000 Egyptian workers in Europe. Article 2 states that "respect for human rights and democratic principles" constitutes "an essential element of the Agreement." As in similar agreements with Tunisia and Israel, either party may take unspecified "appropriate measures" if the other fails to fulfill its obligations. Egypt's ambassador in Brussels, Ra'uf Sa'ad, stated in late March that Egypt considered the human rights language to be a "reference," not a "condition." E.U. and Egyptian officials expected the text to be initialed before the end of 1999 and signed early in 2000. The agreement must be ratified by the parliaments of Egypt, the E.U., and the E.U. member states before taking effect.

E.U. officials said they closely monitored developments related to the new NGO law, and awaited with concern the promulgation of its implementing regulations. In July, then-European Commission vice president Manuel Marin wrote to Human Rights Watch that the commission was "aware of the restrictive nature of the law and the criminal penalties foreseen in the text," and acknowledged that there were "current uncertainties with regard to the scope of legal NGO activities in the future."

United States

The State Department said in 1999 that Egypt would be moving from "an aid-based relationship to a trade-based relationship" with the U.S., and that discussions had been held with the Egyptian government to reduce economic assistance by half over a ten-year period. But in fiscal year 1999 the U.S. remained Egypt's largest supplier of foreign aid, which totaled \$2.1 billion in fiscal year 1999: \$775 million in economic support funds and \$1.3 billion in military assistance. "A significant portion of the funds in both assistance categories are used by Egypt to acquire U.S. goods and services," the State Department said in its annual Country Reports on Economic Policy and Trade Practices, published in January 1999. On March 11, U.S. Defense Secretary William Cohen announced in Cairo the Clinton administration's support for Egypt's request for \$3.2 billion of U.S. weapons, and stated that "a strong military relationship supports a strong diplomatic and political relationship that builds peace and security in the region."

There were no signs that the Clinton administration utilized this massive financial leverage to press actively and publicly for measurable improvement in human rights conditions, despite the largely accurate and extremely negative assessment provided each year in the State Department's Country Reports on Human Rights Practices. As in past years, it closely coordinated diplomatic, military, and commercial ties that cemented the bilateral relationship, with little said in public about human rights and democratic governance.

During President Mubarak's June 26 - July 1 visit to Washington, D.C., there was no public criticism from senior administration officials for his government's poor human rights record. On June 29, Martin Indyk, assistant secretary for near eastern affairs, termed Egypt the "strategic partner" of the U.S. in the Middle East. Citing the Israeli-Arab peace negotiations and policy on Iraq, he added: "We share a common interest and a common vision for the region. We want to promote-together-more peace, more prosperity and more stability."

Prior to Mubarak's visit, the State Department spokesperson on May 28 issued an untypically strong public rebuke of the just-passed NGO law, stating that the U.S. was "deeply disappointed with the apparent thrust of the bill approved by the People's Assembly. We are still reviewing the text, but it appears the law increases the amount of government control of non-governmental organizations. This is the wrong direction to go if Egypt wants to energize civil society and promote development....Efforts to restrict non-governmental organizations are almost inevitably efforts to limit

free speech and free association. We are raising our concerns with senior levels of the Egyptian Government." But at his June 29 briefing, Indyck considerably softened the earlier criticism. "[W]e were concerned about the impact of the new law on NGOs. We engaged with the Egyptian government on this issue, and we received assurances from the responsible minister about the way that the law would operate to ensure that NGOs would be able to operate freely in Egypt," he said.

The Clinton administration continued to praise the Mubarak government for moving forward with privatization and economic reform programs. U.S. ambassador to Egypt Daniel Kurtzer noted on July 18 that there was some \$15 to \$17 billion of U.S. investment in Egypt, and stressed the goals of "more privatization, more U.S. investors, and more trade." The State Department's economic policy and trade report published in January showed a rise in U.S. exports to Egypt between 1996-97, from \$3.1 to \$3.8 billion, and a decline in Egypt's exports to the U.S. over the same period, from \$713 to \$694 million.

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